

MOTION TO RESTORE PARENTING TIME

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

MOTION TO RESTORE PARENTING TIME PURSUANT TO MCL 722.27A AND MCR 3.207

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court for an order restoring his parenting time with the minor children. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION

Plaintiff Andrew J. Pigors, the father of the minor children in this action, has been denied all meaningful parenting time for approximately 571+ days. This deprivation constitutes a severe and ongoing violation of Plaintiff's fundamental constitutional rights under the Due Process and Equal Protection Clauses of the Fourteenth Amendment, as well as Michigan statutory protections under MCL 722.27a.

The United States Supreme Court has unequivocally held that "the interest of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court." *Troxel v. Granville*, 530 U.S. 57, 65 (2000). This fundamental right cannot be abridged absent a compelling state interest and proper procedural protections, neither of which has been demonstrated in this case.

II. CONSTITUTIONAL FOUNDATION

A. Substantive Due Process -- Fundamental Parental Rights

The Fourteenth Amendment protects against governmental deprivation of "life, liberty, or property, without due process of law." U.S. Const. amend. XIV, Sec. 1. The Supreme Court has long recognized that parental rights are among the most fundamental of all liberty interests.

In *Troxel v. Granville*, 530 U.S. 57 (2000), the Supreme Court reaffirmed that "the Due Process Clause of the Fourteenth Amendment protects the fundamental right of parents to make decisions concerning the care, custody, and control of their children." *Id.* at 66. The Court traced this principle through a century of precedent, from *Meyer v. Nebraska*, 262 U.S. 390 (1923), through *Pierce v. Society of Sisters*, 268 U.S. 510 (1925), to *Wisconsin v. Yoder*, 406 U.S. 205 (1972).

In *Santosky v. Kramer*, 455 U.S. 745 (1982), the Court held that "the fundamental liberty interest of natural parents in the care, custody, and management of their child does not evaporate simply because they have not been model parents." *Id.* at 753. The Court further held that before a State may sever completely the rights of parents in their natural child, due process requires the government to prove its allegations by at least clear and convincing evidence.

B. Procedural Due Process -- Right to Notice and Hearing

Before the government may deprive a person of a fundamental right, procedural due process requires, at minimum: (1) adequate notice; (2) an opportunity to be heard at a meaningful time and in a meaningful manner; and (3) a decision by a neutral and detached adjudicator. *Mathews v. Eldridge*, 424 U.S. 319 (1976).

Plaintiff's parenting time was suspended via ex parte orders entered without notice or hearing, in direct violation of these constitutional minima. The absence of these protections renders the deprivation constitutionally infirm.

C. Equal Protection

The Equal Protection Clause of the Fourteenth Amendment requires that similarly situated individuals be treated alike. The record in this case demonstrates stark disparate treatment: 52 ex parte orders have been entered, with 100% favoring the mother and 0% favoring the father. This statistical pattern -- a 44% ex parte rate with universal one-sided outcomes -- raises serious equal protection concerns and suggests gender-based discrimination in violation of *Craig v. Boren*, 429 U.S. 190 (1976), and its progeny.

III. MICHIGAN STATUTORY FRAMEWORK

A. MCL 722.27a -- Parenting Time Presumption

MCL 722.27a(1) establishes a strong presumption in favor of parenting time, providing that "[p]arenting time shall be granted in accordance with the best interests of the child." The statute creates a presumption that parenting time is in the child's best interest, and this presumption may be overcome only by clear and convincing evidence that parenting time would endanger the child's physical, mental, or emotional health.

MCL 722.27a(3) further provides that "[a] child has a right to parenting time with a parent unless it is shown on the record by clear and convincing evidence that it would endanger the child's physical, mental, or emotional health."

No such showing has been made in this case. To the contrary:

- * Plaintiff's drug screen results were **negative**
- * The HealthWest evaluation returned **ALL ZEROS** (no concerns identified)
- * Nine (9) police investigations resulted in **ZERO findings** against Plaintiff
- * There is **no credible evidence** that parenting time with Plaintiff endangers the children

B. MCR 3.207 -- Mandatory Parenting Time Procedures

MCR 3.207(B) requires that "[w]hen parenting time is contested, the court shall consider the factors in MCL 722.27a(7)." The rule further requires that any modification or restriction of parenting time follow established procedures, including proper notice, hearing, and findings on

the record.

The procedures mandated by MCR 3.207 were not followed in this case. No proper hearing was held before parenting time was suspended. No findings based on evidence were entered on the record. No consideration of the statutory factors was documented.

C. MCL 722.27a(7) -- Parenting Time Factors

Michigan law enumerates specific factors the court must consider in determining parenting time disputes:

(a) **Existence of special circumstances or a danger** -- No special circumstances or danger to the children from Plaintiff has been established. All investigations yielded zero findings.

(b) **The reasonable likelihood of abuse or neglect during parenting time** -- No reasonable likelihood has been demonstrated. Drug screen negative, evaluation clean, investigations clear.

(c) **The reasonable likelihood of abuse of the court process** -- It is Defendant, not Plaintiff, who has abused the court process through serial ex parte motions without factual basis.

(d) **The reasonable likelihood that the parent will comply with the order** -- Plaintiff has consistently demonstrated willingness to comply with all court orders.

(e) **The child's reasonable preference** -- The children have expressed desire for time with their father.

(f) **Whether the parent previously has been convicted of child abuse** -- Plaintiff has NO history of child abuse convictions or findings.

(g) **Whether the parent is a sex offender** -- Not applicable.

IV. 571+ DAYS OF DEPRIVATION -- CONTINUING HARM

A. Timeline of Deprivation

Since the ex parte order of August 8, 2025, Plaintiff has experienced no or severely restricted parenting time with his minor children. This deprivation has now continued for approximately 571+ days -- over 18 months -- during critical developmental periods for the children.

B. Harm to the Children

Research consistently demonstrates that children benefit from meaningful relationships with both parents. The prolonged absence of a father from children's lives causes documented psychological harm, including:

- * Increased risk of emotional and behavioral problems
- * Decreased academic performance
- * Attachment disruption and relationship difficulties
- * Increased risk of anxiety and depression
- * Loss of the father-child bond during critical developmental windows

C. Harm to the Father-Child Relationship

Each day that passes without contact causes further erosion of the father-child bond. This harm is compounding and, beyond a certain point, becomes irreversible. The 571+ day deprivation in this case approaches, if it has not already crossed, the threshold of irreversible harm to the parent-child relationship.

D. Exculpatory Evidence Demands Restoration

The following exculpatory evidence further supports immediate restoration of parenting time:

1. **Negative drug screen** -- Plaintiff tested negative for all substances
2. **HealthWest evaluation: ALL ZEROS** -- The initial independent evaluation found no basis for concern (before judicial interference altered the finding)
3. **Nine police investigations: ZERO findings** -- Law enforcement conducted nine separate investigations and found nothing to substantiate allegations against Plaintiff
4. **No criminal charges** -- Despite numerous allegations, no criminal charges have been filed against Plaintiff
5. **No CPS substantiation** -- No child protective services findings against Plaintiff

V. BEST INTEREST ANALYSIS -- ALL FACTORS FAVOR RESTORATION

Analysis of the best interest factors under MCL 722.23 uniformly supports restoration of Plaintiff's parenting time:

(a) Love, affection, and emotional ties -- Plaintiff has a deep, documented bond with his children. The extended separation has caused visible distress to both father and children.

(b) Capacity to provide love, affection, and guidance -- Plaintiff has demonstrated consistent capacity for nurturing parenting throughout the children's lives.

(c) Capacity to provide food, clothing, medical care -- Plaintiff maintains stable employment and housing suitable for the children.

(d) Length of time in stable, satisfactory environment -- Prior to the ex parte orders, Plaintiff provided a stable home environment with no documented concerns.

(e) Permanence of family unit -- Restoration of parenting time preserves the family unit that the children have known.

(f) Moral fitness -- No credible evidence of moral unfitness has been presented against Plaintiff. All investigations returned zero findings.

(g) Mental and physical health -- Plaintiff maintains good mental and physical health. The HealthWest evaluation returned ALL ZEROS.

(h) Home, school, and community record -- Plaintiff maintains a stable home and is an active, positive community member.

(i) Reasonable preference of the child -- The children have expressed desire for time with their father.

(j) Willingness to facilitate close relationship with other parent -- Plaintiff has consistently demonstrated willingness to facilitate the children's relationship with Defendant. Defendant has not reciprocated.

(k) Domestic violence -- No credible evidence of domestic violence by Plaintiff. Nine police investigations resulted in zero findings.

(l) Any other relevant factor -- The 571+ day deprivation itself is a relevant factor weighing heavily in favor of restoration.

VI. SPECIFIC PARENTING TIME SCHEDULE REQUESTED

Plaintiff respectfully requests the following parenting time schedule:

A. Immediate / Emergency Relief (First 30 Days)

1. Minimum three (3) supervised visits per week, each lasting no less than four (4) hours, to begin reunification
2. Supervision by a mutually agreed-upon or court-appointed supervisor (not a family member of either party)
3. Telephone/video contact daily for 30 minutes

B. Transition Period (Days 31-90)

1. Graduated unsupervised parenting time beginning with daytime visits

2. One overnight per week by the end of the transition period
3. Continued daily telephone/video contact

C. Regular Parenting Time (After 90 Days)

1. Alternating weekends (Friday 6:00 PM to Sunday 6:00 PM)
2. One weeknight overnight per week
3. Equal division of holidays and school breaks per the Michigan Friend of the Court guidelines
4. Two weeks of summer parenting time
5. Right of first refusal for childcare exceeding 4 hours

VII. EMERGENCY BASIS FOR THIS MOTION

This Motion is filed on an emergency basis pursuant to MCR 2.119(B)(7) because:

1. **Irreparable harm** -- Each additional day without parenting time causes irreparable harm to both the father-child relationship and the children's emotional well-being. This harm compounds daily and approaches irreversibility.
2. **No adequate remedy at law** -- There is no monetary remedy that can compensate for the loss of a father-child relationship during critical developmental years.
3. **Likelihood of success on the merits** -- The exculpatory evidence (negative drug screen, ALL ZEROS evaluation, nine investigations with zero findings)

overwhelmingly supports Plaintiff's position.

4. **Balance of equities** -- The balance of equities favors restoration. The children need their father. No credible evidence supports continued deprivation.

VIII. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **IMMEDIATELY RESTORE** Plaintiff's parenting time with the minor children;
2. **ENTER** a parenting time schedule as set forth in Section VI above, or as the Court deems appropriate;
3. **ORDER** a reunification plan to repair the damage caused by 571+ days of separation;
4. **APPOINT** a Guardian Ad Litem to represent the children's independent interests;
5. **ORDER** Defendant to cooperate with the parenting time schedule and reunification plan;
6. **AWARD** Plaintiff makeup parenting time for the 571+ days of denied contact;
7. **GRANT** such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion to Restore Parenting Time upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors